

Justification for Other than Full and Open Competition (JOFOC)
FCI Berlin

Pursuant to the Federal Acquisition Regulations (FAR) Subpart 6.302-1(a)(2), and the Federal Bureau of Prison Acquisition Policy (BPAP) 6.304(a), the Federal Bureau of Prisons (BOP) has determined that the procurement of comprehensive medical services (CMS) for the Federal Correctional Institution (FCI), herein after referred to as “institution”, located in Berlin, New Hampshire, meets the criteria established for other than full and open competition. It is further determined that only one responsible source is capable of providing services to the institution and that such an award would prevent serious injury, financial, or other liabilities to the Government. This limitation on competition is justified as supported by the following information:

1. Agency:

Department of Justice
Federal Bureau of Prisons
FCI Berlin
PO BOX 69
1 Success Loop Rd
Berlin, New Hampshire

2. Nature and/or description of the action being approved:

The action to be approved is for the acquisition and continuation of community and institution based comprehensive medical services with “Integrated Medical Services” (IMS). IMS is the incumbent and has agreed to honor their previous Medicare benchmark rates for comprehensive medical services. This interim action will provide the institution the required and necessary acquisition of medical services for the inmate population. The proposed period of performance will be from August 1, 2024 through August 31, 2024.

3. A description of the services required to meet the agency’s needs:

As part of the mission of the institution, comprehensive medical services are provided to the inmate population. In meeting the healthcare needs of the inmate population, the BOP provides essential medical, dental, and mental health services to Federal inmates. When a medical need arises that cannot be provided by the institution medical staff, referrals are made to community-based medical providers. These services include Inpatient/Outpatient Facility and Physician services, as well as Outpatient Institution Services of Optometrist.

The services will be procured by purchase orders. The proposed performance period will be from August 1, 2024 through August 31, 2024 with an estimated total cost of \$98,775.31.

4. Statutory authority permitting other than full and open competition:

The statutory authority permitting other than full and open competition is 41 U.S.C. 3304(a)(1) as implemented by FAR 6.302-1 Only One Responsible Source. Specifically, FAR 6.302-1(a)(2) provides for the applicability of this authority in situations “when the supplies or services required by the agency are available from only one responsible source.”

5. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited:

A Request for Contract Action packet for CMS at the institution has been provided to the Field Acquisition Office (FAO). FAO is currently working towards award of a competitive acquisition. In the interim, the institution must continue to offer medical services to the inmate population. IMS has been the incumbent contractor for over five years and continues to provide the necessary medical services through their established network of local medical facilities and physicians. Additionally, IMS also continues to provide various onsite outpatient institution services to meet the Government's needs. All provider credentialing and background clearances have been completed.

The immediate availability of community-based health care services is critical to avoid any disruption in obtaining the necessary medical services and to ensure the orderly operation of the institutions. In an effort to maintain continuity of care, the Government has determined that it is in the best interest to continue to utilize IMS, who can provide the required medical services without delay. Their established medical network ensures the institution's medical needs are fulfilled.

Therefore, to maintain continuity of medical care for the diverse inmate population, continuing services with IMS and their network of medical service providers alleviates delay and disruption of the overall mission of basic and emergent medical care. Any delay would lead to serious injury to the Government, as it would greatly impact our medical mission; patient care and would cause operational disruptions to the inmates.

6. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and if not, which exception under 5.202 applies:

The requirement will be publicized through the Governmentwide point of entry.

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable:

IMS has agreed to continue providing services via purchase orders, at the same rates of option year four defined in contract DJBP02 I 800000007. These rates were awarded under a competitive acquisition and were determined to be fair and reasonable in accordance with FAR 15.404-1 (b)(2)(i). The rates have been evaluated by the Contracting Officer in accordance with FAR 15 .404-1 (b)(2)(ii) and continue to be deemed fair and reasonable. It is in the best interest of the Government to continue services with IMS during this interim period until a new competitive contract can be awarded.

8. A description of the market research conducted and the results:

This Contracting Officer has conducted market research appropriate to the circumstances and legitimate needs have been identified. Information specific to the services being acquired has been thoroughly documented above. I have determined services of a type customarily available in the commercial marketplace are obtainable. The services under this contract are vital to the Government and must be continued without interruption. A review of the results of recent market research undertaken to meet similar requirements has identified multiple vendors which are capable of meeting the needs of the

Government. However, it has been determined only one source is currently available to provide immediate services to maintain continuity of care while a competitive acquisition is being processed. IMS, as the incumbent provider, is able and willing to continue services with no lapse in coverage until a new contract is awarded.

9. Other facts supporting the use of other than full and open competition:

There are no other supporting facts identified.

10. List of sources, if any that expressed, in writing, an interest in the acquisition:

There are no other sources available that would be able to provide the services in the immediate timeframe required by the Government.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before subsequent acquisition for the required services:

The acquisition of these services is necessary pending the award of a CMS contract. The requirement is being competed by the F AO. As supported in this document, our experience indicates that a single source provider for CMS is beneficial to the agency and the inmate population we service. Once the new contract is competitively awarded, further justification for other than full and open competition will not be necessary.

12. Contracting Officer's certification that the justification is accurate and complete to the best of the Contracting Officer's knowledge and belief:

In accordance with FAR 6.303-2(b) (12), I hereby certify that this justification is accurate and complete to the best of my knowledge and belief. I further certify in accordance with BPAP 6.301, to the best of my knowledge and belief that this request is not the result of a lack of acquisition planning, or a desire to expend funds while those funds are still available.

Kristen E. Croteau
Supervisory Contract Specialist
FCI Berlin

Date